

24PSCV00175 24PSCV00175

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Case Number: 24PSCV00175 Hearing Date: June 24, 2026 Dept: H

Morales, et al. v.

Rosario, et al.,

Case No. 24PSCV00175

ORDER ON MOTION

TO COMPEL FURTHER RESPONSES

Plaintiff Oscar Morales' Motion

for Order Compelling Defendant, Raul Rosario, to Provide Further Responses to Request for Production of Documents, Set No. Two is GRANTED. Defendant is ordered to provide further responses within 20 days from the date of the notice of ruling. Sanctions are awarded in the amount of \$685 and are payable within 20 days from the date of the notice of ruling.

Background

Plaintiffs

Oscar Morales ("Plaintiff") and Refugio Morales (together, "Plaintiffs") allege that they sustained injuries and damages in a February 11, 2022 motor vehicle collision on the I-605 freeway near the Valley Boulevard exit in the City of Industry.

On

January 17, 2024, Plaintiffs filed a complaint, asserting a cause of action for Negligence/Negligence Per Se against Raul Rosario, USA Debusk, LLC, DSG Holdco, LLC and Does 1-50.

On

February 9, 2026, Plaintiffs dismissed their complaint, with prejudice, on behalf of Refugio Morales only.

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Non-Appearance Case Review Re: DSG Holdco is set for July 20, 2026.

The

Final Status Conference is set for March 16, 2027. Trial is set for March 30, 2027.

On May

6, 2026, Plaintiff filed the instant motion. On May 18, 2026, Defendant Raul Rosario ("Defendant") filed his opposition. On June 17, 2026, Plaintiff filed a reply.

Legal

Standard

"[T]he demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A statement of compliance

with the demand is incomplete.

(2) A representation of

inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response

is without merit or too general."

(Code Civ. Proc., § 2031.310,

subd. (a).)

The

motion must include a meet and confer declaration which "state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) "In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute." (Code Civ. Proc., § 2031.310, subd. (b)(3).)

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motion to compel further responses to a demand for inspection or production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).)

If the moving party has shown good cause for the production of documents, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

Notice of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing . . .” (Code Civ. Proc., § 2031.310, subd. (c).)

Discussion

Plaintiff served Defendant his second set of Requests for Production of Documents (the “RFPDs”) on January 12, 2026. (Arm Decl., ¶ 6; Exh. 1.) The RFPDs included a request for any employee witness statements regarding the vehicle collision. (Arm Decl., ¶ 6; Exh. 1.) During his deposition, Defendant testified that he used an employee witness statement to help prepare for the deposition. (Arm Decl., ¶ 7; Exh. 2.) On February 12, 2026, Defendant served his responses. (Arm Decl., ¶ 8; Exh. 3.) However, Defendant did not produce any employee witness statements, only citing various objections including attorney-client privilege and the work product doctrine. (Arm Decl., ¶ 8; Exh. 3.) Following a meet and confer letter, Defendant refused to produce the document. (Arm Decl., ¶¶ 9-10; Exh. 4.) On March 26, 2026, the Court ordered the parties to meet and confer one more time. (Arm Decl., ¶ 11.) Thereafter, the parties met and conferred telephonically, where Defendant again confirmed the document would not be produced. (Arm Decl., ¶ 12; Exh. 5.)

Defendant contends the employee witness statement is privileged/work product, the request is vague, ambiguous, and overbroad, and Evidence Code section 771 is not invoked.

Attorney-Client Privilege/Work Product Doctrine

“The privilege from disclosure accorded the client’s communications to his counsel is the oldest of the confidential communication privileges.” (Sullivan v. Superior Court (1972) 29 Cal.App.3d 64,

71 [internal citations omitted].) “The privilege of confidential communication between client and attorney should be regarded as sacred. It is not to be whittled away by means of specious argument that it has been waived. Least of all should the courts seize upon slight and equivocal circumstances as a technical reason for destroying the privilege.” (People v. Kor (1954) 129 Cal.App.2d 436, 447.) “The privilege is an important right given to protect a relationship that must be sedulously fostered....” (Blue Ridge Ins. Co. v. Superior Court (1988) 202 Cal.App.3d 339, 345 [internal citations omitted].)

A party arguing waiver of attorney-client privilege must prove that “the client has put the otherwise privileged communication directly at issue and that disclosure is essential for a fair adjudication of the action.” (Southern Cal. Gas. Co. v. Public Utilities Com. (1990) 50 Cal.3d 31, 40.) If the “dominant purpose of the relationship between the parties to the communication was one of attorney-client, the communication is protected by the privilege.” (Clark v. Superior Court (2011) 196 Cal.App.4th 37, 51.) Waiver of attorney-client privilege is narrowly defined, and “privileged communications do not become discoverable simply because they are related to issues raised in the litigation.” (Transamerica Title Ins. Co. v. Superior Court (1987) 188 Cal.App.3d 1047, 1052-1053.) “Generally, too, the deliberate injection of the advice of counsel into a case waives the attorney-client privileges as to communications and documents relating to the advice.” (Ibid. at p. 1053.) The attorney-client privilege must be waived by the holder of the privilege, “without coercion.” (Evid. Code, § 912, subd. (a).)

“A writing that reflects an attorney’s impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances.” (Code Civ. Proc., § 2018.030, subd. (a).) “The work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” (Code Civ. Proc., § 2018.030, subd. (b).)

The Court disagrees with Defendant’s position that the document is privileged. Defendant testified he prepared the employee witness statement one day after the accident in accordance with routine company policies. (See Arm Decl., ¶ 7; Exh. 2.) Therefore, when the statement was

prepared, it was not communication between attorney and client. Moreover, Defendant's contention that the statement was not created in the normal course and scope of business fails because the company had this routine reporting process for a reason, as accidents like these occur in their line of business. Because no attorney was involved in creating the statement, there would be no attorney impressions, conclusions, opinions, legal research, or legal theories in the employee witness statement.

Vague, Ambiguous, and Overbroad

The Court also disagrees with Defendant's contention that RFPD no. 32 is vague, ambiguous, or overbroad. The request specifically asks for "Any and all Employee Witness Statement or other statement completed by Defendant Raul Rosario concerning the INCIDENT, including, but not limited to the Employee Witness Statement completed by Defendant Raul Rosario completed on approximately February 12, 2022 concerning the INCIDENT." (Arm Decl., ¶ 6; Exh. 1.) This request is sufficiently narrowed in scope. Additionally, Defendant discusses and identifies the exact document sought in his opposition, demonstrating understanding of the request.

Evidence Code section 771

"[I]f a witness, either while testifying or prior thereto, uses a writing to refresh his memory with respect to any matter about which he testifies, such writing must be produced at the hearing at the request of an adverse party and, unless the writing is so produced, the testimony of the witness concerning such matter shall be stricken." (Evid. Code, § 771, subd. (a).) "Production of the writing is excused, and the testimony of the witness shall not be stricken, if the writing: (1) Is not in the possession or control of the witness or the party who produced his testimony concerning the matter; and (2) Was not reasonably procurable by such party through the use of the court's process or other available means." (Evid. Code, § 771, subd. (c).)

Defendant testified that he used the employee witness statement to refresh his memory prior to his deposition. (See Arm Decl., ¶ 7; Exh. 2.) Therefore, it should be produced pursuant to Evidence Code section 771. Defendant contends the statement is in the company's possession, not Defendant's. However, Defendant fails to state his inability to comply with or obtain the document in response to RFPD no. 32, as required by Code of Civil Procedure section 2031.230. Further, if Defendant's employer is in possession

of the document, Defendant would likely have ability to obtain it.

Plaintiff's motion is granted and Defendant is ordered to provide further responses to the RFPDs within 20 days of the notice of ruling.

Sanctions

Plaintiff requests sanctions in the amount of \$685.00 against Defendants and their attorney of record. Sanctions are awarded in the amount requested.